



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

SUBJECTS FOR STUDY IN EACH SEMESTER LL.B.

SEMESTER - I

LAW OF CRIME-I – BHARTIYA NYAY SANHITA (BNS) 2023

LAW OF TORTS INCLUDING M.V. ACCIDENT & CONSUMER PROTECTION LAWS

HUMAN RIGHTS & INTERNATIONAL LAW

LAW OF CONTRACTS -I

FAMILY LAW-I (HINDU LAW)

LAND LAWS IN MP

SEMESTER - II

LAW OF CONTRACT-II

LAW OF CRIMES-II – BHARTIYA NAGRIK SURAKSHA SANHITA (BNSS)

INDIAN LEGAL & CONSTITUTIONAL HISTORY

FAMILY LAW-II (MUSLIM LAW)

PROPERTY LAW & EASEMENT

GENERAL ENGLISH, LEGAL LANGUAGE & LEGAL WRITING

SEMESTER - III

RIGHT TO INFORMATION & INFORMATION TECHNOLOGY

JURISPRUDENCE

CONSTITUTIONAL LAW OF INDIA

ADMINISTRATIVE LAW

CODE OF CIVIL PROCEDURE

DRAFTING OF PLEADING AND CONVEYANCING (CLINICAL - I)



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SEMESTER - IV

BHARTIYA SAKSHYA ADHINIYAM (LAW OF EVIDENCE)

MEDIA AND LAW

LAW OF TAXATION

CONSTITUTIONAL LAW

PUBLIC INTERNATIONAL LAW

PROFESSIONAL ETHICS, BAR BENCH RELATION & ACCOUNTABILITY FOR
LAWYERS (CLINICAL - II)

SEMESTER - V

INTELLECTUAL PROPERTY

ENVIRONMENTAL LAW

COMPANY LAW

LABOUR LAWS - I

ARBITRATION AND CONCILIATION LAW OF INDIA (CLINICAL - III)

HUMAN RIGHTS LAW & PRACTICE

SEMESTER - VI

LABOUR LAW - II

INSURANCE LAW

CRIMINOLOGY, PENOLOGY & FORENSIC SCIENCE

BANKING LAW

INTERPRETATION OF STATUTES

MOOT COURT (CLINICAL - IV)





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Programme Objectives (POs):

The LL.B. Programme is aimed at:

- Enabling students explore substantive and procedural laws and learn drafting and pleading skills
- Familiarising students with basic laws and judicial interpretations at the national and international level
- Apprising students of the international legal system including rule of law and administration of justice.
- Imparting professionally and socially relevant legal education.
- Sensitising students towards the issues of access to justice of the deprived, marginalised and weaker sections of society.
- Producing internationally competent litigating lawyers, corporate lawyers, judges, judicial officers, legal officers, researchers, law reformers, law teachers, etc.
- Inculcate critical thinking to carry out research objectively without being biased with pre conceived notion.

Programme Specific Outcomes (PSOs):

At the end of the LL.B. course, the students will be able to:

- Understand procedural and substantive laws sufficient to enter the legal profession.
- Analyse and compare domestic and international laws.
- Acquire skills to communicate in both oral and written forms and ability to formulate legal problems and using appropriation concepts to solve them
- Analyze and differentiate facts and law.
- Solve problems by employing legal reasoning, research.
- Choose ethical practices in the profession of law and discharge their social responsibility.



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**LL.B. PART-I SEMESTER - I
PAPER - I LAW OF CRIMES -I**

Bharatiya Nyaya Sanhita – 2023 (B.N.S.)

Unit - I

Basic Concepts of Criminal Law

1. Concept and Meaning of Crime
2. Distinction Between Crime and Other Wrongs
3. Classification of Crimes
4. Fundamental Elements of Crime
5. Stages of Crime
6. Parties to Crime
7. Inchoate Offences
8. Corporate Criminal Liability
9. Principles of Criminal Liability
10. Definitions, general explanations, and expressions (Section 2-3)

Unit - II

Punishments and General Exceptions

1. Punishments (Section 4-13)
2. General Exceptions (Section 14-33)
3. Right of Private Defence (Section 34-44)

Unit - III

Abetment, Conspiracy, and Offences Against Women and Children

1. Abetment (Sections 45-60)
2. Criminal Conspiracy (Section 61)
3. Attempt (Section 62)
4. Offences Against Women (Section 63-90)
5. Offences Against Children (Sections 91-97)



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Unit - IV

Offences Affecting the Human Body, Property, and reputation.

1. Offences Affecting Life (Sections 98-111)
2. Hurt, Grievous Hurt, wrongful restraint, wrongful confinement (Sections 112-125)
3. Criminal Force and Assault (Sections 126-134)
4. Kidnapping, Abduction, Slavery, and Forced Labour (Sections 135-144).
5. Offences Against Property (301-332)
6. Offences relating to documents and property marks (Section 333-348)
7. Offences of criminal intimidation, insult, annoyance, defamation etc. (Section 349-353)

Unit - V

Offences Against the State, Offences relating to public tranquillity, and Other related offences.

12. Offences Against the State (Sections 145-156)
13. Offences relating to army, navy, and air force (Sections 157-166)
14. Offences Relating to Elections (Sections 167-175).
15. Offences relating to coin, currency notes, bank notes, and government stamps. (Section 176-186).
16. Offences Against Public Tranquility (Section 187-195).
17. Offences Relating to Public Servants and Public Justice (Section 196-267).
18. Offences affecting the public health, safety, convenience, decency, and morals. (Section 268-295)
19. Offences relating to religion (Section 296-300)

Suggested readings:

1. Bare Act, Bharatiya Nyaya Sanhita, 2023.
2. Ratanlal & Dhirajlal's Indian Penal Code (Butterworths Wadhwa, Nagpur)(2021)
3. K. D. Gaur, A text Book on the Indian Penal Code (Universal Delhi)(2023).
4. P. S. Achuthan Pillai, Criminal Law (Eastern Book Co.)(2023).
5. B. M. Gandhi , Indian Penal Code (Eastern Book Co.) (2023)
6. S. N. Mishra, Indian Penal Code, Central Law Publication (2020)
7. Prof. Vageshwari Deswal & Adv. Saurabh Kansal, Taxmann's Bharatiya Nyaya Sanhita 2023 (Taxmann)(2024).



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LL.B. PART-I SEMESTER - I

PAPER –II LAW OF TORTS INCLUDING M.V. ACCIDENT & CONSUMER PROTECTION LAW

UNIT- I

Legal concepts of tort, elements of liability (intention, motive, malice, carelessness. Kinds of liabilities, absolute, vicarious, fault, stator general defenses and remedies discharge of actions.

UNIT– II

Negligence as tort wrongs to physical interest, assault, battery may be loss of expectation of life, other kind of bodily harm including harm due to shock.

UNIT–III

Malicious prosecution. Wrongful conferment, wrongs to proprietary interest, conversion, detente, Trespass, occupiers liability of person in control of movables and animal wrongs to personal interest contractual, domestic quasi parental.

UNIT– IV

Consumer protection Act 1986 object, scope, definition consumer protection council, consumer disputes redressed agencies miscellaneous. Defamation including defenses of truth privilege and fair comment, wrongs to other interest (Conspiracy, injuries, falsehood, abuse of legal process)

UNIT– V

Liability, Insurance, Claims of motor vehicles act 1939.

LEADING CASES:-

1. Donogoue Vs Stevenson, 1932 AC 562.
2. Ryland's Vs Flectcher, IRI Ex 456.
3. State of RajsthanVs Mst. Vidyawati, AIR 1962 SC 953.
4. Overseas Tankship (U.K.) Ltd. Vs Mots Deot & Engineering Co. Ltd.(The wagon mund) 1961 385.
5. Municipal Corporation, Delhi Vs Subhagwati, AIR 1966 SC 1874.
6. Indian Medical association V. V.P. Shantha, AIR 1996 SC 530.
7. Lucknow Development authority Vs. M.K.Gupta AIR 1994 SC 787.

RECOMMENDED BOOKS:-

1. Ratan Law- Law of Torts
2. G.K.Kapoor- Law of Torts
3. Bangia- Law of Torts
4. M.N.Shukla- Law of Torts



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LL.B. PART-I SEMESTER - I

PAPER –III HUMAN RIGHTS AND INTERNATIONAL LAW

UNIT- I

1. Theoretical foundations of human rights & international Law.
- 1.1 Basic principles: Sovereign equality of states non- intervention non use of force international co-operation- peaceful settlement of disputes.
- 1.2 Individuals as subjects of international law.
- 1.3 State jurisdiction on terrorism hijacking, narcotics, war crimes and crimes against peace.
- 1.4 Treatment of aliens.

UNIT- II

2. Historical development of concepts of human rights.
- 2.1 Human rights in Indian tradition: ancient, medieval and
- 2.2 Modern.Human rights in western tradition.
- 2.2.1 Concept of natural law.2.2.2 Concept of natural rights.
- 2.3 Human rights in legal tradition: International law and National law

UNIT- III

- 3.UN and Human rights.
- 3.1Universal Declaration of human rights (1948) individual and group rights.
- 3.2Covenant on political and civil rights (1966).
- 3.3Covenant on economic, social and cultural rights (1966).
- 3.4ILO and other conventions and protocols dealing with human rights.
- 3.5 Disarmament threat to human rights.3.6International HR commission.
- 3.7Mandates of States.3.8Rights to development.

UNIT- IV

4. Role of Regional organizations. 4.1 European Convention on Human Rights.
- 4.2 American Convention on Human Rights.4.3 African Convention on human rights. 4.4 SAARC.

UNIT- V

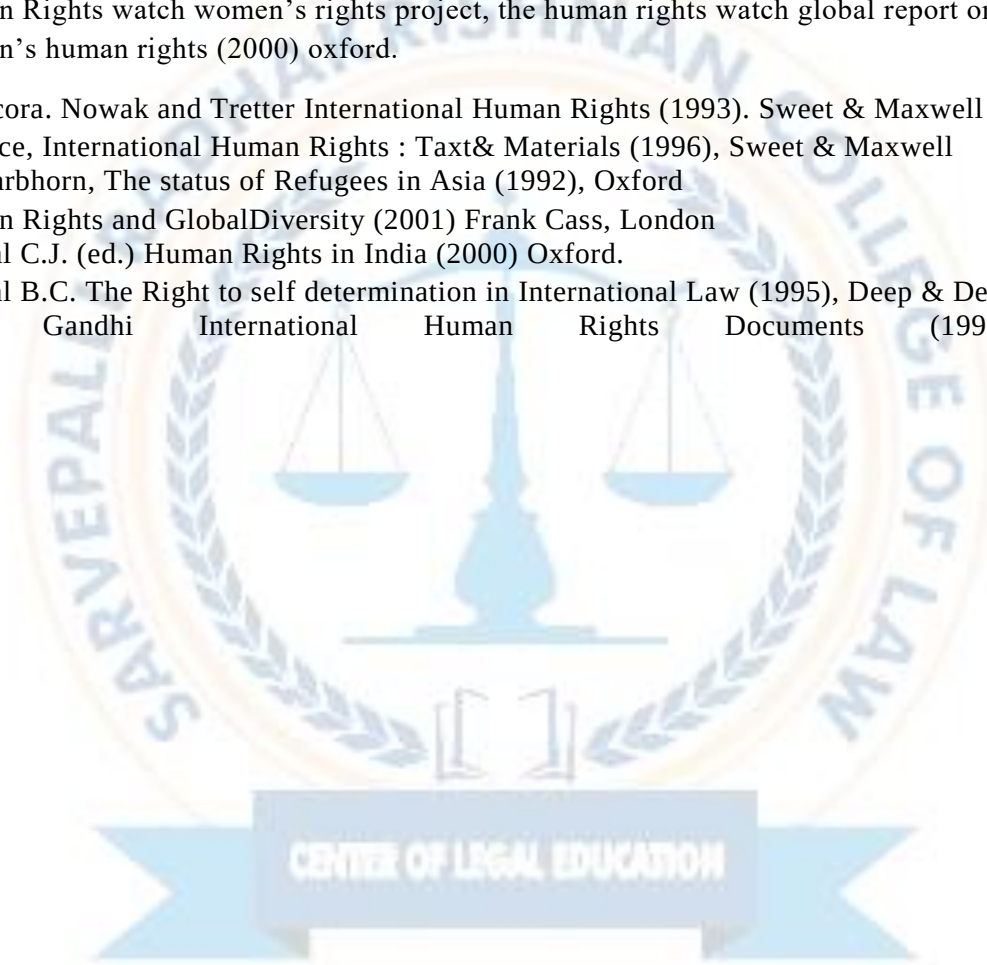
5. Protection agencies and mechanisms.5.1 International commission of human rights.
- 5.1.1 Amnesty international.5.1.2 Non- Government organizations (NGOs)
- 5.2 European commission on human rights /court of human rights. 5.3 U.N. Division of human rights.
- 5.4 International labour organization.5.5 UNESCO.5.6 UNICEF



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RECOMMENDED BOOKS:-

1. S.K.Avesti and R.P. Kataria law relating to human rights, Chh IV, V, VII, XIV, XXIX, and XXXIX 2000) orient. New delhi.
2. S.K. Varma, Public International Law (1998) PHI, New Delhi.
3. Peter J. Van Krieken(ed.) The Excluosn on Clause(1999), Kluwer.
4. Human Rights watch women's rights project, the human rights watch global report on women's human rights (2000) oxford.
5. Ermacora. Nowak and Tretter International Human Rights (1993). Sweet & Maxwell
6. Wallace, International Human Rights : Taxt& Materials (1996), Sweet & Maxwell
7. Muntarbhorn, The status of Refugees in Asia (1992), Oxford
8. Human Rights and GlobalDiversity (2001) Frank Cass, London
9. Nirmal C.J. (ed.) Human Rights in India (2000) Oxford.
10. Nirmal B.C. The Right to self determination in International Law (1995), Deep & Deep.
P.R. Gandhi International Human Rights Documents (1999) Universal,





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LL.B. PART-I SEMESTER - I

PAPER –IV LAW OF CONTRACT– I

UNIT- I

1. History and nature of contractual obligations.
2. Agreement and contract: definitions, elements and kinds of contract.
3. Proposal and acceptance. 4. Consideration.

UNIT- II

Capacity to contract

1. Free consent.2.Undue Influence.3. Misrepresentation.4.Fraud.
5. Mistake.6. Unlawful considerations and objects.7. Fraudulent.

UNIT- III

1. Injurious to person or property. 2. Immoral.3. Against Public policy.
4. Void and void able agreements.5. Contract without consideration.
6. Agreement in restraint of marriage. 7. Wagering contract and its exception.

UNIT- IV

1. Contractual obligation- remedies.
2. Damages, remoteness of damages, ascertainment of damages.
3. Government contracts.

UNIT- V

Specific Relief Act

1. Specific performance of contract.
2. Contract that can be specifically enforced & that cantbeenforced.
3. Persons against whom specific enforcement can be ordered.
4. Rescission and cancellation.5. Injunction, temporary, perpetual.
6. Declaratory orders. 7. Discretion and powers of court.

RECOMMENDED BOOKS:-

1. Beasten(ed.) Anson's Law of Contract(27 ed. 1998)
2. P.S. Atiya, Introduction to the law of contract1992 reprint (Claredon law Series).
3. Avtarsingh, Law of contract (2000) Eastwrn, Lucknow.
4. G.C. Cheshire, and H.S.Fifoot and M.P.Furmston, Law of Contract (1992) ELBS with butterworths.
5. M.Krishnan Nair, Law of Contract (1998).
6. G.H. Treltet, Law of Contracts, Sweet & Maxwell (1997 reprint)



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7. R.K. Abhichandani, (ed.) Pollock & Mulla on the Indian Contract and the Specific Relief Act (1999) Tripathi
8. Banerjee S.C. Law of Specific Relief (1998) Universal.
9. Anson, Law of Contract (1998) Universal.
10. Dutt on Contract (2000), Universal
11. Anand & Aiyer, Law of Specific Relief (1999), Universal





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LL.B. PART-I SEMESTER - I
PAPER –V FAMILY LAW-I (HINDU LAW)

UNIT-I

1. Nature of Hindu law. 2. Hinduism, origin and development, definitions.
2. School and Sources.
- 3.

UNIT- II

1. Marriage. 2. Kinds, nullity of marriage. 3. Hindu marriage Act 1955
4. Special marriage Act 1954. 5. Divorce. 6. Judicial separation, Restitution of conjugal rights.
7. Group for matrimonial remedies.

UNIT- III

1. Joint family.2. Coparcenaries, property under mitakshara and Dayabhag.
3. Partition and Re- union, women estate, stridhan.

UNIT-IV

1. Gifts, wills. 2. Hindu adoption and maintenance Act 1956.

UNIT- V

1. General rules of succession. 2. Disqualification relating to succession.
3. Hindu Succession Act 1956. 4. Religious Endowment.

RECOMMENDED BOOKS:-

1. Paras Diwan, Law of Intestate and Testamentary Succession (1998), universal.
2. Basu, N.D. Law of Succession (2000) universal.
3. Kusem, Marriage and Divorce law manual (2000) universal.
4. Machanda. S.C. Law and Practice of Divorce in India (2000) Universal
5. P.V. Kane, History of Dharmasastra Vol. 2 pt. 1 at 624-632 (1974)
6. Kuppaswami (ed.) Mayne's Hindu Law and Usage Ch. 4 (1986)
7. B. Sivaramaya, Inequalities and the law, (1985)
8. K.C. Daiya, "Population control through family planning in India, "Indian Journal of Legal Studies, 85 (1979)
9. J.D.M. Derrett, Hindu Law : Past and Present
10. J.D.M. Derrett, Death of Marriage Law
11. A.A.A. Fyzee outline of Muhammadan Law, (1998)
12. Alladi Kuppaswami, (ed.) Mayne's Hindu Law and Usage, (1970)
13. Paras Diwan, Hindu Law (1985)
14. S.T. Desai (ed.) Mulla's Principles of Hindu Law, (1998) – Butterworths – India
15. Paras Diwan, Family Law: Law of Marriage and Divorce in India (1984)
16. A.M. Bhattachargee, Muslim Law and the Constitution (1994) Eastern Law house Calcutta
17. Paras Diwan, Law of Adoption, Ministry, Guardianship and Custody (2000), Universal



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LL.B. PART-I SEMESTER - I
PAPER –VI LAND LAWS IN M.P.

STATUTES IN COURSE:-

1. M.P. land revenue code 1959.
2. The ceilings on agricultural act 190.
3. M.P. Accommodation control Act, 1961.

UNIT– I

M.P. land revenue code 1959. Object and reasons and basic features of enacting Madhya Pradesh land revenue code, 1959. Definitions board of revenue, revenue offers and their classes & powers. Procedure of revenue officer, revenue courts.

UNIT- II

Appeal, revision & review, land & land revenue, revenue survey & settlement in non urban areas, assessment & re- assessment of land in urban areas, land records, boundaries & boundary marks, survey marks, realization of land revenue.

UNIT-III

Tenure holders, govt. lessee & service land, occupancy tenant, allusion & service land, consolidation of holding, village officers, rights in abadi & unoccupied & its procedure.

UNIT-IV

The M.P. ceiling on agricultural holding act 1960, definitions section 2, exemptions & restriction on transfer of land (sec. 3 to 5). Fixing of ceiling area; determination of surplus land and acquisition thereof (section 6-16). Payment of compensation (sec. 16-21). In- cumbrances on surplus land (sec. 22- 34). Disposal of surplus land (sec. 35- 37). Offences & penalties (sec. 37- AC- 37.8). Miscellaneous (sec. 38-50).

UNIT- V

M.P. accommodation control Act, 1961. Definitions, provisions regarding rent. Control of eviction of tenants. Eviction of tenants on grounds of “Bonafide” requirement. Deposit of rent, appointment of rent controlling authorities, their powers, functions and appeals. Provisions regarding special obligations of land lords and penalties.

RECOMMENDED BOOKS:-

1. H.N. Dwivedi- M.P. land revenue code.
2. R.D. Jain- M.P. land revenue code.
3. H.N. Dwivedi M.P. BhuRajaswaSanhita (Hindi Edn.)
4. R.D. Jain मप्र. भू-राजस्व संहिता (हिन्दी)
5. ॰hivdayalShrivastava मप्र. भू-विधि



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LL.B. PART-I SEMESTER - II
PAPER – I LAW OF CONTRACT– II

UNIT - I INDEMNITY:-

1. The concept.
2. Need for indemnity to facilitate commercial transactions.
3. Method of creating indemnity obligations.
4. Definition of indemnity.
5. Nature and extent of liability of the indemnifier.
6. Commencement of liability of the indemnifier.
7. Situations of various types of indemnity creations.
8. Documents/ agreements of indemnity.
9. Nature of indemnity clauses.
10. Indemnity in case of international transactions.
11. Indemnity by governments during interstate transactions.

UNIT – II GUARANTEE:-

1. The concepts.
2. Definition of guarantee: as distinguished from indemnity.
3. Basic essentials for a valid guarantee contract.
4. The place of consideration and the criteria for ascertaining the existence of consideration in guarantee contracts.
5. Position of minor and validity of guarantee when minor is the principal debtor, creditor or surety.
6. Continuing guarantee.
7. Nature of surety's liability.
8. Duration and termination of such liability.
9. Illustrative situations of existence of continuing guarantee.
10. Creation and identification of continuing guarantee.
11. Letters of credit and bank guarantee as instances of guarantee transaction.
12. Right of surety.
13. Position of surety in the eye of law.
14. Various judicial interpretations to protect the surety.
15. Co-surety and manner of sharing liabilities and rights.
16. Extent of surety's liability.
17. Discharge of surety's liability.

UNIT - III BAILMENT:- Identification of bailment contracts in day today life.

1. Manner of creation of such contracts.
2. Commercial utility of bailment contracts.
3. Definition of bailment.
4. Kinds of bailment.
5. Duties of bailor and bailee towards each other.
6. Rights of bailor and bailee.
7. Finder of goods as bailee.
8. Obligation to keep the goods safe.
9. Right to dispose of the goods.

PLEDGE:-

1. Pledge: comparison with bailment.
2. Commercial utility of pledge transactions.
3. Definition of pledge under the Indian contract Act.
4. Other statutory regulations (State & Centre) regarding pledge, reasons for the same.
5. Rights of the pawner and pawnee.
6. Pawner's right of sale as compared to that of an ordinary bailee.
7. Pledge by certain specified persons mentioned in the Indian Contract Act.

UNIT- IV AGENCY:-

1. Identification of different kinds of agency transactions in day to day life in the commercial world.
2. Kinds of agents and agencies.
3. Distinction between agent and servant.
4. Essential of agency transaction.
5. Various methods of creation of agency.
6. Delegation.
7. Duties and rights of agent.
8. Scope and extent of agent's authority.
9. Liability of the principal for acts of the agent including misconduct and tort of the agent.
10. Liability of the agent towards the principal.
11. Personal liability towards the parties.
12. Methods of termination of agency contract.
13. Liability of the principal and agent before and after such termination.

UNIT- V SALE OF GOODS:-

1. Concepts of sale as a contract.
2. Illustrative instances of sale of goods and the nature of such contracts.
3. Essentials of contract sale.
4. Essential conditions in every contract of sale.
5. Implied terms in contract sale.
6. The rule of caveat emptor and the exception there to under the sale of goods Act.
7. Changing contracts of caveat emptor.
8. Effect and meaning of implied warranties in the sale.
9. Transfer of title and passing of risk.
10. Delivery of goods: various rules regarding delivery of goods.
11. Unpaid seller and his rights.
12. Remedies for breach of contract.

RECOMMENDED BOOKS:-

1. R.K. Abhichandani(ed.) Pollack and Mulla on Contract and Specific Relief Acts(1999) Trpathi, Bombay.
2. Avtar Singh, Contract Act (2000), Eastern Lucknow.
3. Kishnan Nair, Law of Contract,(1999) Orient.
4. Avtar Singh, Principles of the Law of Sale of Goods and hire Purchase (1999).
5. J.P. Verma(ed.) Singh and Gupta. The Law of partnership in India (1999). Orient law house, Newdelhi.
6. A.G. Guest (ed.), Benjamin's Sale of Goods (1992), Sweet & Maxwell.
7. Bhashyam and Adiga, The Negotiable Instruments Act (1995), Bharath, Allahabad
8. M.S. Parthasarathy (ed.) Anson's Law of Contract, (1998), Oxford, London
9. Saharaya, H.K. Indian Partnership and sale of Goods Act (2000), Universal
10. Ramaningam, The Sales of Goods Act (1998), Universal



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**LL.B. PART-I SEMESTER - II
PAPER - II LAW OF CRIMES -II (B.N.S.S.)
Bhartiya Nagarik Suraksha Sanhita2023**

Unit - I

**Basic Concepts of Criminal Procedure Laws and Constitution of Criminal Courts
(Section 1-33)**

1. Introduction to Criminal Procedure
 - a. Definition and scope
 - b. Historical development and significance of criminal procedure law
2. General Principles of Criminal Procedure
 - a. Due process of law
 - b. Rights of the accused
 - c. Principles of natural justice
3. Hierarchy of Criminal Courts
 - a. Structure and organisation of criminal courts
 - b. Jurisdiction and powers of various courts
4. Role of Police and Prosecution
 - a. Powers and functions of police in criminal investigation
 - b. Role and responsibilities of public prosecutors
5. Fundamental Rights and constitutional provisions related to Criminal Proceedings
 - a. Right to fair trial
 - b. Right to legal representation
 - c. Right against self-incrimination
6. Preliminary
7. Constitution of Criminal Courts and Offices
8. Power of Courts

Unit - II

Offices and Pre-Trial Procedures (Sections 34-288)

1. Arrest of Persons
2. Processes to Compel Appearance
3. Process to Compel Production of Things



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4. Reciprocal Arrangements for Assistance
5. Information to the Police and Their Powers to Investigate

Unit -III

Trial Procedures (Sections 197-338)

1. Jurisdiction of the Criminal Courts in Inquiries and Trials
2. Conditions Requisite for Initiation of Proceedings
3. Complaints to Magistrates
4. Commencement of Proceedings Before Magistrates
5. The Charge
6. Trial Before a Court of Session
7. Trial of Warrant-Cases by Magistrates
8. Trial of Summons-Cases by Magistrates
9. Summary Trials

Unit - IV

Post-Trial Procedures and other general provisions (Sections 289-406)

1. Plea Bargaining
2. Attendance of Persons Confined or Detained in Prisons
3. Evidence in Inquiries and Trials
4. General Provisions as to Inquiries and Trials
5. Accused persons with mental illness
6. Provisions as to offences affecting the administration of justice

Unit - V

Sentencing, Appeals, and Miscellaneous Provisions (Sections 407-533)

1. Submission of Death Sentences for Confirmation
2. Appeals
3. Reference and Revision
4. Transfer of Criminal Cases

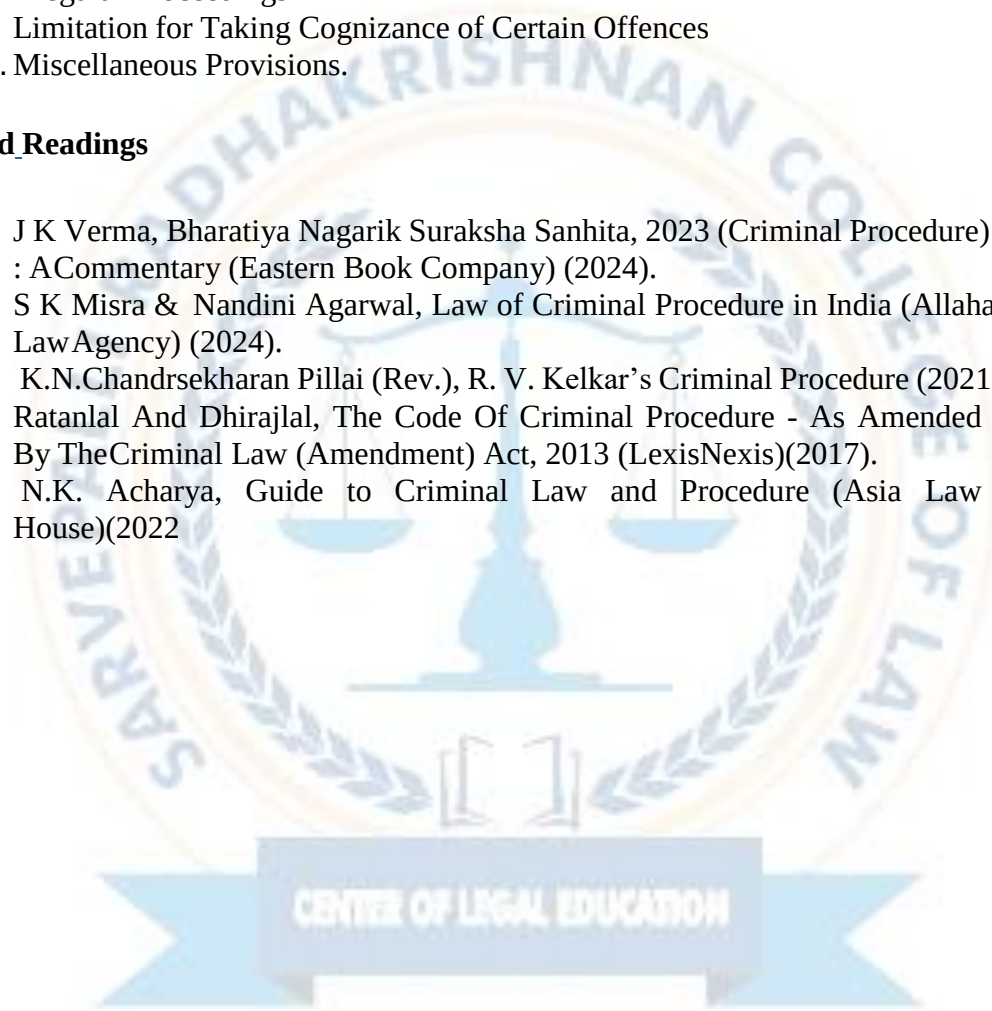


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5. Execution, Suspension, Remission, and Commutation of Sentences
6. Provisions as to Bail and Bonds
7. Disposal of Property
8. Irregular Proceedings
9. Limitation for Taking Cognizance of Certain Offences
10. Miscellaneous Provisions.

Suggested Readings

1. J K Verma, Bharatiya Nagarik Suraksha Sanhita, 2023 (Criminal Procedure) : A Commentary (Eastern Book Company) (2024).
2. S K Misra & Nandini Agarwal, Law of Criminal Procedure in India (Allahabad Law Agency) (2024).
3. K.N.Chandrsekharan Pillai (Rev.), R. V. Kelkar's Criminal Procedure (2021).
4. Ratanlal And Dhirajlal, The Code Of Criminal Procedure - As Amended By The Criminal Law (Amendment) Act, 2013 (LexisNexis)(2017).
5. N.K. Acharya, Guide to Criminal Law and Procedure (Asia Law House)(2022)





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**LL.B. PART-I SEMESTER - II
PAPER – III INDIAN LEGAL AND CONSTITUTIONAL**

UNIT- I HISTORY OF COURTS:-

Law during Muslim period charter of 1600 administration of justice in the three presidencies. Mayors courts admiralty courts development through charters of 1753, 1813, 1833 and 1853 formation of high court (1861) regulating act of 1773 Supreme Court of Calcutta. Act of settlement 1781 grant of diwani and adalat system plan of Warren Hastings, judicial reforms by various governors generals history of appeals from India to Privy Council (all charters from 1600).

UNIT- II HISTORY OF LEGISLATION & LEGAL PROFESSION:-

Legislation and compilation of laws history of civil & criminal laws before Indian Penal Code, role played by principle of justice equity and good conscience, codification of laws history of legal profession comparison of vakils mukhtars & advocates in India history of laws reporting & history of legal education in India.

UNIT- III

Early constitutional developments Indian Council Act 1861 Govt. of India Act 1909, 1919, 1935 Cripps Mission, Cabinet Mission Small Plan of 1945 formation of Constituent Assembly and Provisional Governments Mountbatten Plan and Indian Independence Act 1947.

UNIT-IV

Drafting of Constitution development in Indian states adoption of Constitution salient features of Indian Constitution need for review.

UNIT- V LEADING CASES:-

1. Nand Kumar Trial, 1775
2. Patna Case, (1777- 1779)
3. Cassijurah, 1779.

RECOMMENDED BOOKS:-

1. M.P. Jain : Outlines of Indian legal history
2. V.D. Mahajan : Indian Constitutional history
3. V.D. Kulshreshtha : Land marks in Indian constitutional history



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**LL.B. PART-I SEMESTER - II
PAPER –IV FAMILY LAW-II (MUSLIM LAW)**

UNIT-I

Origin and development of Muslim who is Muslim, conversation to Islam nature and history of Mohammedan law, school of Muslim law and sources of Muslim law Siya and Sunnie.

UNIT-II

Marriage, iddet, muta marriage, option of poverty divorce, dissolution of marriage act1939.

UNIT-III

1. Guardianship- elements, types.
2. Maintenance, liability mehar-types.

UNIT-IV

Wills, gift, doctrine of musha pre- emption, wakf.

UNIT-V

Parentage and acknowledgement, succession and death bed transaction.

RECOMMENDED BOOKS:-

1. Akil Ahmed- Mohammedam Law
2. Mulla- Mohammedan Law
3. Dr. Paras Diwan – Muslim Law in modern India
4. Aquil Ahmed- Mohammedan Law
5. Fyzee- Introduction to Mohammedan Law.
6. Schat : Mohammedan Jurisprudence
7. Coulson : Principles of Mohammedan
8. Jhavala : Principles of Mohammedan law
9. मौर्य : मुस्लिमविधि
- 10 पारस दीवान : आधुनिकमुस्लिमविधि



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**LL.B. PART-I SEMESTER - II
PAPER –V PROPERTY LAW AND EASEMENT**

UNIT– I INTRODUCTION:-

Concept and meaning of property, various definition given under transfer of property act, kinds of property- movable and immovable property- tangible and intangible property- intellectual property, copyright- patents and designs, trademarks.

UNIT-II

Law relating to transfer of property under transfer of property act, 1882. General principles of transfer of property whether movable or immovable (Sec. 5 to 37).

UNIT-III

General principles of transfer of immovable property sale, mortgage (Sec. 38 to 53 “A”)

UNIT – IV

Gift, leases, exchange actionable claims.

UNIT-V

Easement nature, characteristics, definition and essentials creation of easements, kinds riparian right, extinction, suspension and revival of licenses.

RECOMMENDED BOOKS:-

1. Mulla- Transfer of Property Act.
2. V.P. Sarthy- Transfer of Property.
3. R.K.Sinha- Law of Transfer of Property.
4. N.K. Jhabwala- The Indian Easement Act.



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LL.B. PART-I SEMESTER - II
PAPER –VI GENERAL ENGLISH,
LEGAL LANGUAGE AND LEGAL WRITING

UNIT-I Grammar

Simple, compound, complex sentences, Tense, Phrase and Clause, Active – Passive, Positive-Negative, Interrogative, Reported Speech, Conditionals.

Phonetics Theory and Practice

The phonetics Script, Reading exercises – stress, accent and intonation suitable for Indian speaker with emphasis on clarity speech and felicity of expression.

UNIT-II

Introduction to Legal Language

Characteristics of Legal Language, History of legal Language, Legal Language in India

UNIT-III Legal Terminology

Terns used in civil law and criminal law, Latin word and expressions – law register, General Juristic Writings in English

UNIT-IV Fundamental Principles of Legal Writing

Concision – clarity cogency – simplicity of structure, Brief writing and drafting of law reports, Writing of case comments, Essay writing on topics of legal interes

UNIT-V Proficiency in Regional Language

Every student should acquire skills of understanding analysis writing and communication in the regional language, which he has to use in the interaction with the potential clientele. Necessarily the proficiency in the language will contribute in a substantial measure to a successful practice in law. Phrases translation from English to Hindi and Vice Versa practice of Translations of any act from Hindi to English and Vice Versa. Writing reacting and comments on important Legal issues published in Newspaper in Hindi and English. Adding to vocabulary in Hindi and English, Learning local terms used in the courts, local Districts and expressions for various documents and their standard nomenclature. Writing essay in English and Hindi.

BOOKS RECOMMENDED:-

1. Sunil Sharma : General English
2. Sharma : Learning Legal Language – (Hindi and English edition) PHI Learning
3. Dr.MadabhusShridhar : legal Language
4. Stroud : Judicial Dictionary, 4th ed. 1982
5. Ballantine : Law dictionary (1969)
6. Squires and Numbsur : Legal writing in Nut shell, 1982
7. N.M. Tripathi, Bombay
8. Tripathi : Legal writing Legal Essay and Gen. Eng.
9. Aiyor : Concise Law Dictionary
10. R.L. Jain : Legal writing including Gen. English
11. भारतसरकार द्वारा प्रकाशित : विधि शब्दावली
12. बावेल : विधिक भाषा लेखन एवं सामान्य अंग्रेजी



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LL.B. PART-II SEMESTER – III

PAPER - I Right to Information & Information Technology Law

Unit-I

Introduction to Right to Information (RTI)

Concept and Evolution

- a. Definition and significance of RTI.
- b. Historical background and development of RTI in India.
- c. International perspectives on RTI.
1. Legal Framework
 - a. Overview of the Right to Information Act, 2005.
 - b. Constitutional basis of RTI in India.
 - c. Comparison with RTI laws in other countries.
2. Objectives and Importance
 - a. Empowerment of citizens.
 - b. Transparency and accountability in governance.
 - c. Promoting good governance.
3. Scope and Applicability
 - a. Who can request information?
 - b. What constitutes "information" under the Act?
 - c. Public authorities covered under the Act.

Unit-II

(A.) Procedures and Mechanisms

1. Filing an RTI Application
 - a. Steps to file an RTI application.
 - b. Format and content of the RTI application.
 - c. Time limits for filing and responding to RTI requests.
2. Role of Public Information Officers (PIOs)
 - a. Duties and responsibilities of PIOs.
 - b. Appointment and training of PIOs.
 - c. Handling and processing of RTI requests by PIOs.
3. Appeal Process
 - a. First Appeal: Grounds, procedure, and time limits.
 - b. Second Appeal: Role of the Central and State Information Commissions.
 - c. Case studies on appeals and decisions.
4. Exemptions and Limitations
 - a. Specific exemptions under Section 8 and 9 of the RTI Act.



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- b. Partial disclosure and severability.
- c. Third-party information and confidentiality.

(B) Role of Information Commissions

1. Central Information Commission (CIC)
 - a. Composition, powers, and functions.
 - b. Procedures for complaints and appeals.
 - c. Landmark decisions and their impact.
2. State Information Commissions (SICs)
 - a. Composition, powers, and functions.
 - b. Procedures for complaints and appeals.
 - c. Case studies on significant SIC rulings.
3. Enforcement and Penalties
 - a. Powers of Information Commissions to impose penalties.
 - b. Measures to ensure compliance by public authorities.
 - c. Challenges in enforcement and compliance.

Unit - III

(A) Impact and Challenges

1. Impact of RTI on Governance
 - a. Success stories of RTI in promoting transparency.
 - b. Role of RTI in combating corruption.
 - c. RTI and citizen participation in governance.
2. Challenges and Issues
 - a. Misuse and abuse of RTI.
 - b. Problems faced by information seekers and PIOs.
 - c. Institutional and procedural challenges.
3. Recent Developments and Reforms
 - a. Amendments to the RTI Act.
 - b. Judicial interpretations and landmark judgments.
 - c. Proposals for strengthening the RTI regime.

(B) Practical Application and Future Prospects

1. RTI and Media
 - a. Role of media in promoting RTI.
 - b. Use of RTI by journalists for investigative reporting.
 - c. Case studies on RTI and media exposure.
2. RTI and Civil Society
 - a. Role of NGOs and civil society organisations.
 - b. Community-led RTI initiatives and success stories.
 - c. Advocacy for RTI awareness and training programs.
3. Future of RTI in India
 - a. Technological advancements and RTI (e-governance, digital RTI



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applications).

b. Prospects for expanding RTI to the private sector.

c. Vision for RTI in enhancing democratic governance.

Unit - IV

(A) Introduction of Information Technology Act. 2000

1. Origin and meaning of Cyberspace
2. Cyberspace vs. Physical space
3. Legal Issues in Cyberspace
4. Need of Regulation for Cyberspace
5. Different Models of Cyberspace Regulation

(B) Information Technology Act

1. A brief overview of Information Technology Act, 2000
2. IT Act 2000 vs. IT Amendment Act 2008
3. Relevant provisions from Indian Penal Code, Indian Evidence Act, Bankers Book Evidence Act, Reserve Bank of India Act, etc.

(C) Concept Of Electronic Signature And Digital Signature

1. Relevance of Signature
2. Handwritten signature vs Digital Signature
3. Technological Advancement and development of signature
4. Digital Signature and Cryptography, Public Key and Private Key, Public

Key Infrastructure

5. Electronic Signature
6. Electronic Signature vs. Digital Signature
7. UNCITRAL Model Law on Electronic Signature

Unit - V

(A) E – Commerce

1. Meaning and Origin of E-commerce
2. Tools of E-Commerce and Models of e-commerce
3. UNCITRAL Model Law on E-commerce
4. E-Commerce under IT Act, 2000
5. Issues and challenges of E-Commerce

(B) Cyber Crimes

1. Cyber Crimes - Definitions and Nature
2. Conventional Crimes vs Cyber Crimes
3. Types of Cyber Crimes
4. Cyber offences covered under the Information Technology Act, 2000
5. Cyber offences and other laws (IPC, POCSO etc.)
6. Issues relating to investigation of cybercrimes in India
7. Cyber Contravention



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Suggested Readings:

1. Dr. J.N. Barowalia, Commentary on the Right to Information Act (Universal Law Publishing, Delhi)(2024).
2. Dr. Niraj Kumar, Handbook on Right to Information (Bharat Publishers) (2024).
3. Sudhir Naib, The Right to Information Act 2005: A Handbook (Oxford India Handbooks, India)(2013).
4. Pankaj K. P. Sheryaskar, RTI Act in India: Futures and Implications (McGraw Hill Education (India) Private Limited, India)(2017).
5. Commentary on Right to Information Act, 2005 by R Chakraborty (Taxmann)(2024).
5. Pankaj K. P. Sheryaskar, Transparency and Right to Information, Latvia (EU)(2012).
6. Shailesh Gandhi and Prahlad Kachare, RTI Act – Authentic Interpretation of Statute (Vakils, Feffer and Simons Pvt. Ltd., Mumbai) (2016).
7. P. K. Das, Handbook on RTI Act (Universal Law Publishing, Delhi)(2016).
8. Vakul Sharma, Information Technology Law and Practice (Universal LexisNexis)(2023)
9. Krishna Pal Malik, Information Technology & Cyber Law (Allahabad Law Agency)(2023)
10. Justice Yatindra Singh, Information Technology Law (Law & Justice Publishing Co.)(2023).
11. N S Nappinai, Technology Laws Decoded (LexisNexis)(2017).
1. Shobha Singh Thakur et al., Emerging trends in cyber crimes and cyber laws in india (Book Rivers)(2023).



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**LL.B. PART-II SEMESTER - III
PAPER – II JURISPRUDENCE
(LEGAL METHOD AND BASIC THEORY)**

UNIT-I Introduction

Definition on the term “Jurisprudence”, definition of law, kinds of law, justice & its kinds

UNIT-II Schools of Jurisprudence

Natural law school, analytical school, historical school, sociological school, realistic school.

UNIT-III Source of law

Legislation, precedents concept of stare decises, customs.

UNIT-IV Legal Rights: the concept

Rights, kinds, meanings, duty, meaning and kinds, relation between right and duty, personality, nature of personality, status of the unborn minor, lunatic, drunken and persons, corporate personality, dimension of the modern legal personality: legal personality of non-human beings.

UNIT-V Possession and ownership: the concept

Kinds of possession, kinds of ownership, difference between possession and ownership, liability, condition of imposing liability, strict liability, vicarious liability, obligation, nature and kind.

RECOMMENDED BOOKS:-

Bodenheim Jurisprudence- the philosophy and method of law(1996)

Fitzgerald,(ed) Salmond on Jurisprudence (1999) tripathi.

W. Friendmann, Legal theory(1999)

V.D.Mahajan, Jurisprudence and Legal theory(1996)

M.D.A. Freeman (ed.) Liroy's introduction to jurisprudence(1994), Sweet and Maxwell Paton

G.W. Jurisprudence (1972) Oxford, ELBS

H.L.A. Hart, The concepts of Law (1970) oxford, ELBS

Roscoe pond, Introduction to the philosophy of Law (1998 reprint) Universal Delhi

Dias, S.N. Jurisprudence: A Study of Indian Legal Theory (1985), Metropolitain, New

Delhi Vidhishastra Ek Adhyaan (Jurisprudence) – Balkrishna and Sharma PHI Learning 2010



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LL.B. PART-II SEMESTER - III

PAPER – III CONSTITUTIONAL LAW OF INDIA-I

UNIT-I

Definition of constitution, constitution law, constitutionalism, salient features of Indian constitution, welfare states, preamble union and its territory formation of new states citizenship.

UNIT-II

State, fundamental rights, and their position under the constitution right to equality right to freedom, right against exploitation, right to freedom of religion cultural and educational rights, rights to constitutional remedies.

UNIT-III

Directive principles of state policy, their relevance, comparison with fundamental rights, fundamental duties, correlation between fundamental rights, fundamental duties and directive principles of state policy.

UNIT-IV

Parliament, union, executive, president and vice president, council of ministers; attorney general, legislative procedure, money bill & other financial matters; union judiciary.

UNIT-V

Centre state relationship, services under union & state tribunals, election. Emergency amendment of the constitution.

RECOMMENDED BOOKS:

1. V.N.Shukla- Constitution of India
2. J.N.Pandey- Constitution of India
3. M.P.Jain- Constitution of India
4. Sarma- Introduction to the constitution of India-PHI
5. Rai- Fundamental rights and their enforcement-PHI
6. शर्मा : भारत का संविधान
7. बाबेल : भारत का संविधान
8. डॉ. पी.के.त्रिपाठी : भारत का संविधान



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LL.B. PART-II SEMESTER - III
PAPER – IV ADMINISTRATIVE LAW

UNIT-I

Meaning, definitions, nature, historical development, sources, relationship with constitutional law, droid administrative, rule of law and separation of powers, classification of administrative functions and distinction between them.

UNIT-II

Delegated legislation and its kinds, administrative directions and distinction between delegated legislation and administrative directions, control over delegated legislation procedural, judicial and parliamentary control, principles of natural justice.

UNIT-III

Administrative discretion and judicial control of discretionary powers, act of state, tortious and contractual liability of the state.

UNIT-IV

Government privileges in legal proceedings, Estoppel and waiver, official secrets and right to information, likpal, lokayukt and central vigilance commissions of inquiry.

UNIT-V

Administrative tribunal's merits, demerits, reasons for growth, distinction between court and tribunals, public corporation, classification characteristics control remedies constitutional and ordinary.

RECOMMENDED BOOKS:-

1. G.K.Kwati- The Arbitration and conciliation law of india
2. Avatar Singh- Arbitration and conciliation
3. Goyal- Arbitration and conciliation Act.
4. Jayakumar- Administrative Law. PHI
5. Avatar Singh : मध्यस्थ एवंसुलभ एवंअनुक्रमलिपि क
6. Inderjeet Malhotra : मध्यस्थ एवंसुलभअधिनियम 1986



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LL.B. PART-II SEMESTER - III

PAPER –V CODE OF CIVIL PROCEDURE, 1908

UNIT-I Introduction

Concepts:- Affidavit, order, judgment, degree, plaint, restitution, execution, decree holder, judgment-debtor, manse profits, written statement, distinction between decree and judgment and between decree and order.

Jurisdiction:- Kinds, hierarchy of courts, suit of civil nature, scope and limits, res sub juice and res judicata, foreign judgment enforcement, place of suing, institutes of suit, parties to suit: joinder mis-joinder or non-joinder of parties: representative suit, frame of suit: cause of action, alternative disputes resolution(ADR), summons.

UNIT-II Pleading:- Rules of pleading, singing and verification, alternative pleading, construction of pleadings, plaints: particulars, admission, return and re junction, written statement: particulars, rules of evidence, set off and counter claim, distinction, discovery, inspection and production of documents, interrogatories, privileged documents, affidavits.

UNIT-III Appearance, Examination and Trial:- Appearance, Ex-prate procedure, summary and attendance of witnesses, trial, adjournments, interim order: commission, arrest or attachment before judgment, injunction and appointment of receiver, interests or costs, execution, the concepts, general principles, power for execution of decrees, procedure for execution(section 52-54), enforcement, arrest and detection(ss 55-56), attachment(ss 65-64), sale (ss 65-97), deliver of property, stay of execution.

UNIT-IV Suits in particular cases: - By or against government (ss 79-82), by aliens and by or against foreign rules or ambassadors (ss 83 -87A), public nuisance (ss 91-93), suits by or against firm, mortgage, interpleaded suits, suits relating to public charities.

UNIT-V Appeals review, reference and revision: - Appeals from decree and order general provision relating to appeal, transfer of cases, restitution, caveat, inherent power of courts, law reform: law commission on civil procedure, amendments, law of limitation, the concepts the law assists the vigilant and not those who sleep over the rights.

Object:- Distinction with latches, acquiescence, prescription, extension and suspension of limitation, sufficient cause for not filling the proceedings, illness, mistaken legal advise, mistaken view of law, poverty minority and purdah, imprisonment, defective vakalatnama, legal liabilities, foreign rule of limitation: contract entered into under a foreign law, acknowledgement-essential requisites, continuing tort and continuing breach of contract.

RECOMMENDED BOOKS:-

1. Mulla-Code of civil procedure(1999), Universal Delhi
2. C.K.Thacker- Code of civil procedure (1999), Universal Delhi
3. M.R. Mallick(ed.), B.B. Mitra – On limitation Act(1998) Eastern Lucknow
4. Majumdar P.K. and Kataria R.P. Commentary on the Code of Civil Procedure, 1908 (1998), Universal Delhi
5. Saha A.N. - The code of civil Procedure (2000). Universal Delhi
6. Sarkar's Law of Civil Procedure (2000), Universal Delhi
7. Universal' Code of Civil Procedure (2000).



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LL.B. PART-II SEMESTER - III

PAPER –VI DRAFTING OF PLEADING & CONVINCING (CLINICAL-I)

UNIT–I

- a. **Drafting: - General** principles of drafting and relevant substantive rules shall be taught.
- b. **Pleading:-** Civil : plaint, w/s; interlocutory application; original petition; affidavit; execution petition; memorandum of appeal and revision; petition under article 226 and 32 of constitution of India criminal complaints; misc. petition; bail application; memorandum of appeal and revision conveyance- sale deed; mortgage deed; lease deed; gift deed; promissory note; power of attorney; and will- drafting of writ petition & PIL petition. 15 practical exercises in drafting carrying a total of 45 mark (3 marks for each). 15 practical exercises in conveyancing carrying a total of 45 mark (3 marks of each). The remaining 10 marks will be given in a Viva- voice.

RECOMMENDED BOOKS:-

- 1. Dale- Legislative Drafting
- 2. Bakshi P.M.- An Introduction to Legislation Drafting
- 3. Kalish Roy- Drafting & Pleading.
- 4. Majumdar- Law of Pleading, Conveyancing & Drafting.
- 5. Majumdar- Law of Conveyancing.
- 6. J.P. Singhal : Pleading, Judgments & Charges
- 7. Behera, B.K. : Better Drafting
- 8. Chaturvedi : Principles & Forms of Pleadings & Conveyancing



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LL.B. PART-II SEMESTER - IV
PAPER - I Bhartiya Sakshya Adhiniyam

Unit - I

Basic Concepts of Evidence Law

1. Introduction to Evidence Law
 - a. Definition and scope of evidence
 - b. Historical development and significance of evidence law
2. Relevancy of Facts
 - a. Facts in issue and relevant facts
 - b. Relevancy and admissibility of evidence
3. Types of Evidence
 - a. Oral evidence
 - b. Documentary evidence
 - c. Primary and secondary evidence
4. Presumptions and Burden of Proof
 - a. Legal presumptions
 - b. Burden of proof and its implications
5. Judicial Notice
 - a. Facts judicially noticeable
 - b. Scope and limitations

Unit - II

Relevancy of Facts (Sections 3-50)

1. General Principles of Relevance
2. Admissions
3. Confessions
4. Statements by Persons Who Cannot be Called as Witnesses
5. Statements made under special circumstances
6. Judgments of Courts when relevant
7. Opinions of Third Persons When Relevant
8. Character when relevant

Unit - III

On Proof, Oral evidence, Documentary evidence and related law (Sections 51-103)

1. Facts Which Need Not be Proved
2. Oral Evidence
3. Documentary Evidence



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4. Public Documents
5. Presumptions as to Documents
6. Exclusion of Oral Evidence by Documentary Evidence

Unit - IV

Production and Effect of Evidence (Sections 104-168)

1. Burden of Proof
2. Estoppel
3. Witnesses
4. Examination of Witnesses

Unit - V

Improper Admission and Rejection of Evidence and Miscellaneous (Sections 169-170)

Improper Admission and Rejection of Evidence (Sections 169-170)

- a. *No new trial for improper admission or rejection of evidence*
- b. *Repeal and savings (Section 170)*
- c. *Impact of Technology on Evidence Law*
- d. *Challenges and solutions*
- e. *Future trends in evidence law*

Suggested Readings

1. K. A. Pandey, V. P. Sarathi's Law of Evidence (Eastern Book Company) (2023).
2. Ratanlal & Dhirajlal, The Law of Evidence (LexisNexis) (2021).
3. Sarkar, Law of Evidence – In India, Pakistan, Bangladesh, Burma, Ceylon, Malaysia & Singapore (LexisNexis) (2020).
4. Woodroffe and Amir Ali, Law of Evidence (LexisNexis) (2020).
5. Chief Justice M Monir, Law of Evidence (Universal Law Publishing) (2016).

CENTER OF LEGAL EDUCATION



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LL.B. PART-II SEMESTER - IV

PAPER –II MEDIA AND LAW

UNIT-I Mass Media – Types of – Press Films, radio Television

1. Ownership patterns – press – private – public, 2. Ownership patterns – films Private
3. Ownership patterns – radio & Television, Public,
4. Differences between visual and non – visual Media – Impact on peoples minds

UNIT-II Press – Freedom, of speech and Expression – Article 19 (1) (a)

1. Includes Freedom of the Press 2. Laws of defamation, obscenity, blasphemy and sedition
3. The relating to employees wages and service conditions
4. Price and pages schedule Regulation, 5. Newsprint control order
6. Advertisement – is it included within freedom of speech and expression?
7. Press and the monopolies and Restrictive trade practices Act.

UNIT-III Films – for Included in freedom in of speech and expressions?

1. Censorship of films – constitutionality, 2. The Abbas case
3. Differences between films and press – why pre – censorship valid for films but not for the press
4. Censorship under the cinematograph Act

UNIT-IV Radio and television – Government monopoly

1. Why Government department?, 2. Should there be an autonomous corporation?
3. Effect of television of people, 4. Report of the chandda committee
5. Government policy, 6. Commercial advertisement
7. Internal security of serial etc 8. Judicial Review of Doordarshandecisions : Freedom to telecast

UNIT-V Constitutional Restrictions

1. Radio and television subject to law of defamation and obscenity.
2. Power of legislate – Article 246 read with the seventh schedule.
3. Power of impose tax – licensing and Licence fee

RECOMMENDED BOOKS:-

1. M.P. Jain, Constitutional Law of India (1994) Wardha
2. H.M. Seervai, Constitutional Law of India Vol. (1991) Tripathi, Bombay
3. Neelamalar – Media Law and Ethics PHI
4. John B. Haward, “The Social Accountability of Public Enterprises” in Law and community contn in New Development Strategies (International Center for law in Development 1980)
5. Bruce Michael Boyd, “Film censorship in India : A Reasonable Restriction on freedom of speeand expression” 14 J.I.L.I. 501 (1972)
6. Rajeev Dhavan “On the law of the press in India” 26 J.I.L.I. (1984)
7. Rajeev Dhavan, “Legitimizing Government Rehetoric; Reflections on some Aspects of social press Commission “26 J.I.L.I. (1984)
8. Soil Sorabjee, Law of press Censorship in India (1976)
9. Justice E.S. Venkaramiah, freedom of press: Some Recent trends (1976)



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10. D.D. Basu, The Law of press of India(1980)
11. Students should consult relevant volumes of the Annual Survey of Indian Law Published by Indian Law Institute. (Constitutional Law 1 & 11 Administrative and Public Interest

Litigation.

12. V.N. Shukla Constitutional Law of India
- 13 डॉ. पाण्डे जयनारायण भारत की संवैधानिक विधि
- 14 एम.पी.जैन भारत की संवैधानिक विधि
- 15 पी.क.त्रिपाठी भारत का संविधान





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LL.B. PART-II SEMESTER - IV

**PAPER –III LAW OF TAXATION (INCOME TAX, WEALTH TAX,
CENTRAL SALES TAX & MP COMMERCIAL TAX)**

The following enactments are in course:

1. Income tax act 1961
(As amended upto date) (Whole act)
2. Central sales tax act, 1956
(As amended upto date) (Whole act)

UNIT – I Income Tax Act, 1961

History of tax law in India, Fundamental principles relating to tax government financial policy, tax structure and their role in the natural economy. Concept of tax, Nature and characteristics of taxes, Distinction between, Tax and fee, Tax and cess, Direct and indirect taxes, Tax evasion and tax avoidance, Scope of taxing powers of parliament, state legislature and local bodies,

UNIT-II

Income and total income, Income not included in total income, Deemed income, Clubbing of income, Assessee, Person, Tax Planning, Chargeable income

UNIT-III

Heads of income, Salaries, Income from house property, Capital from business of profession, Capital gains, Income from other sources, Deductions, relief and exemptions, Rate of Income Tax, Income tax authorities, Power and functions, Offences and penal sections, Settlement of grievances, Authorities, powers and functions

UNIT – IV Central Sales Tax Act, 1956

Sale of purchase of goods, Meaning of sale, Sale in the course of interstate trade and commerce, Sale to take place outside as state, Sale in the course of export of import, Charge of tax, Exemption and rebate, Sales tax authorities, Offences and penalties, Constitutional perspectives, Constitutional perspectives

UNIT-V

Commr of Income Tax Vs. Sulej Cotton Mills Supply Agencies Ltd. (1975) 100 ITR 706, 711 (SC). Manglore Electric Supply Co. Ltd. Commr of I.T. (1978) 113 ITR 635 (SC).

RECOMMENDED BOOKS:-

1. A.K. Saxena : Income tax act
2. Kailash Rai : Income tax act
3. V.K. Singhania : Students guide to income tax
4. P.C. Gang : Central Sales tax law in India
5. Ramesh : Supreme Court on direct taxes (Bharat law house, New Delhi)



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LL.B. PART-II SEMESTER - IV
PAPER –IV CONSTITUTIONAL LAW – II

UNIT-I

Administration of Union Territories, The Panchayat : and MunicLities, The schedule and tribal areas

UNIT–II

Relation between the Union and the State, Distribution of legislative power, Administrative relations, Disputes relating to water, trade, commerce and intercourse within territory of India

UNIT-III

Financial provisions: Property, contracts, rights, liabilities obligation and suit Public service commissions, service under the Union and the States

UNIT-IV

Tribunals, elections, special provisions, relating to certain classes, official language

UNIT-V

Emergency provisions : Proclamation of emergency, effect of emergency, financial emergency, Amendment in the Constitutions

RECOMMENDED BOOKS:-

1. D.D. Basu, Shorter Constitution of India, (1996), Prentic Hall of India, Delhi
2. H.M. Seervai, Constitution of India, vol. 1-3 (1992), Tripathi, Bombay
3. M.P. Singh (ed.) V.N. Shukla, Constitutional Law of India (2000), Oxford
4. Indian Constitution, V.N. Shukla
5. Constitution of India, V.P. Mahajan
6. भारतकासंविधान—ज य नारायण पाण्डे

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LL.B. PART-II SEMESTER - IV
PAPER –V PUBLIC INTERNATIONAL LAW

UNIT - I

Definition and concept of international Law, Source of International Law, Historical development of International Law

UNIT - II

Relationship of International Law and Municipal Laws, Subject of International Law, place of individuals in International Law

UNIT - III

States, recognition, States, Succession, Acquisition and loss of state territory

UNIT – IV

Responsibilities of state CBBT, Nationality, aliens, Asylum, extradition, diplomatic agents, treaties

UNIT - V

International organizations – U.N.O., including in its organs and International criminal court, Settlement of Disputes, International terrorism, disarmament

RECOMMENDED BOOKS:-

1. S.K. Kapoor : International Law
2. R.P. Anand : Salient Documents in International Law
3. S.C.H. Warzenberger : A Manual of International Law
4. J.G. Starke Introduction to International Law
5. Gurdeep Singh : International Institutions
6. D.W. Bowett : International Institutions
7. Oppenheim : International Law
8. Breirly : Law of Nations



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LL.B. PART-II SEMESTER - IV

**PAPER –VI PROFESSIONAL ETHICS, BAR BENCH RELATION&
ACCOUNTABILITY FOR LAWYERS (CLINICAL-II)**

Note :-The written exam of this paper will have 80 marks and viva-voce will carry 20 marks, Written examination will be conducted by the university, Viva-voce of this paper will be conducted by the University. Viva-voce of this paper will be conducted by a panel of two examiners out of which one external examiner shall be appointed by the examination committee of the university and internal examiner shall be appointed by the Principal/Director/Head of the Institution concerned. The remuneration shall be as per the university norms.

UNIT-I Admission, Enrolment & rights of advocate

Importance of Legal Profession, Persons who may be admitted as advocate on a State roll, Disqualification for enrolment, Rights of Advocates, State Bar Councils - Establishment and organization, Powers and Functions, Bar Council of India – Organization, Powers and Functions

UNIT-II Ethics of Legal Profession

Meaning, nature and need, Duty to all clients

UNIT-III Punishment for professional or other misconduct

Professional or other misconduct – meaning and scope, The body or authority empowered to punish for professional or other misconduct, State Bar Council and its disciplinary committee, Bar Council of India and its disciplinary committee, Complaint against advocates and procedure to be followed by the disciplinary committee, Remedies against the order of punishment

UNIT-IV Bench Bar Relation

Role of Judge on maintaining rule of Law, Mutual respect, Maintenance of orderly society, Invaluable aid of advocates to judges, Privilege of advocates, Duty to avoid interruption of council, Administration of Justice clean & pure, Uncourteous conduct, misconduct of lawyers and insulting language

UNIT-V Meaning and Categories of contempt of court

Contempt of court – its meaning and nature, Kinds of contempt – Criminal contempt, Civil Contempt, Contempt by Lawyers, Contempt by judges, magistrates or other persons acting judicially, Contempt by State, Corporate bodies & other officers

RECOMMENDED BOOKS:-

1. Mr. Krishnan MurthyIyer : Advocate
2. The Contempt Law and Practice (Contempt of Courts Act 1971)
3. The Bar Council Code of ethics
4. Advocate Act
5. Pleadings, Drafting & Conveyancing - Jhabvala
6. 50 selected opinion of Disciplinary Committees of Bar Council and 10 major Supreme \Court on the subject
7. कैलाश राय विधिक आधार अधिवक्ता की जबावदेही एवं बेंच बार संबंध



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LL.B. PART-III SEMESTER - V
PAPER –I INTELLECTUAL PROPERTY

UNIT – I Introduction

The meaning of intellectual property, The main forms of intellectual property : copyright, trademarks, patents and designs , Other new forms such as plant varieties and geographical indications, Introduction to the leading international concerning intellectual property rights : the Berne, Convention, Universal Copyright, Convention, the Paris Convention Trips, the World Intellectual Property Rights Organization (WIPO) and the UNESCO

UNIT – II Selected aspects of the Law of copyright in India

Historical evolution of the copyright law, Meaning of copyright , Copyright in literary, dramatic and musical works, Copyright in sound records and cinematograph films, Ownership of copyright, Assignment and license of copyright, Copyright authorities, Aspects of copyright justice, Remedies, especially, the possibility of Anton Pillar injunctive relief in India

UNIT – III Intellectual Property in Trademarks

The rationale of protection of trademarks as (a) an aspect of commercial and (b) of consumer rights, Definition and concept of trademarks, Registration of trademark-authorities under the trademark Act, Passing off and infringement, Remedies

UNIT – IV The Law of Intellectual Property : Patents

Concepts of patents, Historical view of the patents law in India, Process of obtaining a patent : general introduction, Procedure for filling patent co-operation treaty, Prior publication or anticipation, Rights and obligations of a patentee, Compulsory Licenses, Infringement, Defenses in suit of infringement, Injunctions and related remedies

UNIT-V

Geographical indication Act, New plant culture and breeds Act

RECOMMENDED BOOKS:-

1. Cormish W.R. Intellectual Property, Patents, Trade Marks, Copy Right and Allied Rifht(1999), Asia Law House, Hyderabad
2. Sople – Managing Intellectual Property – The Strategic Imperative – PHI Learning 2011
3. VikasVashishth, Law and practice of Intellectual Property (1999) Bharat Law House Delhi.
4. P. Narayanan, Intellectual Property law (1999), (ed) Eastern Law House, Calcutta
5. BibeckDebroy (ed). Intellectual Property Right (1998), Rajiv Gandhi Foundation, Delhi.
6. U.I.F. Anderfelt, International Patent Legislation and Developing Countries (1971) W.R.
7. Cornish, Intellectual Property (3rded) (1996) Swwet and Maxwell
8. K. Thairani, copyright: The Indian Experience (1987)
9. W.R. Cornish, parg and Materials on Intellectual Property (1999), Sweet.



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LL.B. PART-III SEMESTER - V
PAPER – II ENVIRONMENTAL LAW

UNIT – I Concept of Environment and Pollution

Environment, Meaning and concept, Pollution-Meaning and Effects of pollution, Environmental Pollution (Water, Air and Noise Pollution), Meaning and standards, Culprits and victims, Offences and penalties

UNIT – II International Historical Perspective

Stockholm conference, Rio conference, U.N. declaration on right to development

UNIT – III Constitutional Provisions related to Environment

Constitution making – development and property oriented approach, Directive principles, (Status, role and interrelationship with fundamental rights and fundamental duties), Fundamental Duty, Judicial approach, Fundamental Rights (Rights to clean and healthy environment, Environment Vs. Development), Enforcing agencies and remedies (Courts, Tribunal, Constitutional, Statutory and judicial remedies), Emerging principles (Polluter pays: Public liability insurance, precautionary principles)

UNIT – IV Environment Protection Measures VISA VIS Environment Pollution

Protection agencies: power and functions, Protection: means and sanctions, Emerging protection through delegated legislation, Hazardous waste, Bio-medical waste, Judiciary: complex problems in administration of environment justice

UNIT-V

Greenery conservation laws, Forest conservation, Conservation agencies, Prior approval and non-forest purpose, Symbiotic relationship and tribal people, Denudation of forest: Judicial approach, Wild life, Sanctuaries and national parks, State monopoly in the sale of wild life and wild life article, Offences against wild life

Bio-diversity:

1. Legal control
2. Control of eco-unfriendly experimentation on animal, plants, seeds and microorganism.

SELECTED BIBLIOGRAPHY:-

1. Armin Resencranze, et. Al. (eds.) Environmental Law and Policy in India (2000), Oxford
2. R.B. Singh and Suresh Mishra, Environmental Law in India (1996), Concept Pub. Co.
3. New-Delhi.
4. Venkat – Environmental Law and Policy – 2011 PHI learning
5. Kailash Thakur, Environmental Protection Law and Policy in India (1997), Deep and Deep Pub. New Delhi
6. Richard L. Riverze, et. El. (eds.), environmental Law, The Economy and sustainable Development (2000), Cambridge
7. Christopher D. Stone, should Trees Have Standing and other Essays on law, Moral and environment (1996), Oceana
1. Leelakrishnan, P. et, al. (eds.) Law and Environment (1990), Eastern Lucknow
2. Leelakrishnan, P. The Environment Law in India (1999), Butterworths India
3. Department of Science and technology, Government of India, Report of the committee



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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL

Recommending Legislative Measures and Administrative Machinery for ensuring environment Protection (1980) (Tiwari Committee Report)

8. Sengar – Environmental Law 2011 PHI Learning (with CD).





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LL.B. PART-III SEMESTER - V
PAPER – III COMPANY LAW

UNIT – I Meaning of Corporation

Theories of corporate personality, Creation and exemption of corporations

UNIT – II Forms of corporate and non-corporate organization

Corporations partnership and other association of persons, state corporations Government companies, small scale, co-operative, corporate and joint sectors

UNIT – III Law relating to companies – Public and Private – Companies Act 1956

Promoters, Need of company for development, formation of a company registration and incorporation, Memorandum of association –various clauses-alteration therein-doctrine of ultra virus, Articles of association – binding force – alteration – its relation with memorandum of association – doctrine of constructive notice and indoor management – exceptions, Prospectus-issue-liability for misstatements in lieu of prospectus, Position, Shares – general principles of allotment, statutory restrictions transfer of shares – relationship between transferor and transferee, Shareholder – who can be ? and who cannot be shareholder –modes of becoming shareholder-calls on shares – forfeiture and surrender of shares – lien on shares, Share capital – kinds – alteration and reduction of share capital – further issue of capital – conversion of loan and debentures into capital – duties of courts to protect the interest of creditors and share holders

UNIT - IV

Directors – position –appointment – qualification – vacation of office – removal – resignation – powers and duties of directors – meeting, registers, loans – remuneration of directors – role of nominee directors – companies for loss of office – managing directors and other managerial personnel, Meetings – kinsprocedure – voting, Dividends payment – capitalization – profit, Audit and accounts, Borrowing powers –powers – effect of unauthorized borrowing – charges and mortgages – investments, Debentures – meaning – fixed and floating charges – kinds of debentures share holder and debenture holder remedies for debenture holders, protection of minority rights, Protection of oppression and mismanagement – who can apply ? Powers of the company, court and of the central Government, Investigations – powers, Private companies – nature and advantages – government companies – holding and subsidiary companies, Winding up – types – by court – reason – ground – who can apply – procedure – powers of liquidator – powers of court – consequences of winding up order voluntary winding up order voluntary winding up subject to supervisions of courts – liability of past members – payment of liability preferential payment, unclaimed dividends – winding up of unregistered company.

UNIT – V Corporate Liability

Legal liability of companies – civil and criminal, Remedies against them civil, criminal and tortuous – specific relief Act, writs liability under special statutes

SELECTED BIBLIOGRAPHY:-

1. Avtar Singh Indian Company Law (1999), eastern Lucknow
2. L.C.B. Gower, Principles of Modern Company Law (1997) Sweet and Maxwell, London



SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,

SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL

3. Palmer Palmer's Company law (1987), Stevans, London
4. R.R. Pennington, Company Law (1990), Butterworths
5. A. Ramiya, Guide to the companies Act, (1998), wadhwa
6. S.M. Shah Lectures on Company Law (1998), Tripathi, Bombay





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LL.B. PART-III SEMESTER - V

PAPER – IV LABOUR LAWS – I

UNIT-I

General Introduction, Industrial jurisprudence, Labour policy in India, Industrial revolution in India, evils of industrializations, labour problems, Growth of labour legislation in India.

UNIT-II

Industrial dispute Act 1947, Short title, definition & authorities, Notice of change, Reference of certain industrial dispute to grievance settlements authorities, board, courts, tribunals, Power procedure & duties of authorities, Strike, lock out, lay, Retrenchment, Penalties.

UNIT-III

Trade Union Act 1926, Registration of trade union, Rights & liabilities of registered trade union, Regulation, Penalties & procedure.

UNIT-IV

Minimum wages Act 1948, Introduction & definition, Minimum wages; fixation & procedure, Authorities under the Act, Fixation of hours of work & wages, Claims & their determination, Cognizance of offence.

UNIT-V

Factories Act 1948, Introduction, definition, registration & licensing, The inspecting staff, health, Safety, Working hours of adult, Annual leave with wages, Penalties & provisions

SELECTED BIBLIOGRAPHY:-

1. John Bowers and Simon Honeyball, Text book on Labour Law (1996), Blackstone, London
2. Shrivastava K.D. Commentaries on payment of wages Act 1936 (1998), Eastern Lucknow
3. Shrivastava K.D. Commentaries on minimum wages Act (1948) (1998), Eastern Lucknow
4. Rao S.S. Law and Practice on minimum wages (1999), Law Publishing House, Allahabad
5. Seth D.D. Commentaries on Disputes Act 1947 (1998), Law Publishing House, Allahabad
6. Shrivastava K.D. Commentaries on factories Act 1948 (2000), Eastern Lucknow
7. R.C. Saxena Labour problems and social welfare
8. V.V. Giri labour problems in India Industries
9. O.P. Malhotra, The Law of Industrial Disputes (1998) Universal Delhi
10. S.C. Srivastava, Social Securities and labour laws pts. 5 and 6 (1985), Universal Delhi
11. S.C. Srivastava, Commentary on the Factories Act 1948 (1999) Universal Delhi
12. Padhi – Labour and Industrial law PHI learning.



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LL.B. PART-III SEMESTER - V

**PAPER –V ARBITRATION AND CONCILIATION LAW OF INDIA
(CLINICAL-III)**

Note :- Viva voce Examination of this paper will be conducted by a panel of two examiners out of one external examiner shall be appointed by examination committee of the concerned university and internal examiner shall be appointed by head/principal/Director of institute concerned.

UNIT – I Introduction

International arbitration, Ad hoc arbitration, specialized arbitration, Statutory arbitration, International conventions – Matters that may be referred to arbitration Capacity of the parties, Forms of arbitration agreement, Mandatory contents of arbitration agreement, Validity of the agreement.

UNIT – II Domestic Arbitration

Essential, kinds, who can enter into arbitration agreement, validity, reference to arbitration, interim measures by court.

UNIT – III Arbitrational Tribunal

Appointment, challenge, jurisdiction of arbitral tribunal, powers, grounds of challenge, procedure and court assistance.

UNIT – IV Award

Rule of guidance, form and content, correction and interpretation, grounds of setting aside an award, can misconduct be a ground, incapacity of a party, invalidity of arbitration agreement, want of proper notice and hearing, beyond the scope of reference, contravention of composition and procedure, breach of confidentiality, impartiality of the arbitrator, Bar of limitation, resjudicata, consent of parties, enforcement.

UNIT – V Conciliation

Distinction between “conciliation”, “negotiation”, “Mediation” and arbitration”, appointment, statements to conciliator, interaction between conciliator and parties, communication, duty of the parties to co-operate, suggestions by parties, confidentiality, resort to judicial proceedings, costs.

BOOKS RECOMMENDED:-

1. G.K. Kwatr : The Arbitration and Conciliation law of India
2. Avtar Singh : Arbitration and Conciliation
3. Goyal : Arbitration and Conciliation act
4. अवतारसिंह : मध्यस्थ एवंसुलहअनुक्रमलिपिक विवाद एवंनिपटानविधि
5. इन्द्रजीतमल्होत्रा : मध्यस्थ एवंसुलहअधिनियम 1986



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LL.B. PART-III SEMESTER - V

PAPER –VI HUMAN RIGHTS LAW & PRACTICE

UNIT-I

Historical development and concept of human right, human right in India ancient, medieval and modern concept rights, human right in western tradition, concept of natural law and natural rights, human right in legal tradition: International law and national, UN and human rights, universal declaration of human rights (1948) individual and group rights, covenant on political and civil rights(1966).

UNIT-II

Convention on economic social and cultural right (1996), convention on the elimination of all forms of discrimination against women, convention on the rights of the child.

UNIT-III

Impact and implementation of international human rights norms in India, human rights norms reflected in fundamental rights in the constitution, directive principles: legislative and administrative implementation of international human rights norms through judicial process.

UNIT-IV

Human rights and disadvantage groups, enforcement of human right in India.

UNIT-V

Role of courts: the Supreme Court, high courts and other courts, statutory commissions- human rights, women's minority and backward class.

RECOMMENDED BOOKS:-

1. S.K.Avesti and Kataria, Law relating to human rights, orient New Delhi.
2. Human rights watch women's rights watch global report on women's human rights Ermacora
3. Nowak and Tretter, International human rights(1993)
4. Wallace, International human right: text & materials (1996)
5. Human rights & global diversity (2001), Frank Cass, Landon
6. Nirmal B.C. The Right of self Determination in International law (1995),
7. Deep and Deep P.R. Gandhi, International Human Rights Documents (1999) Universal Delhi.
8. Human Rights Covenants and Indian Law – Sharma PHI learning 2010
9. ManavAdhikaronAntarrashtriyaprasamvidayan our Bharat kiVidhi – Sharma PHI learning. Universal
- 10 Declaration of Human Rights and Indian Law – Sharma PHI Learning.



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LL.B. PART-III SEMESTER - VI

PAPER –I LABOUR LAWS – II

UNIT-I

Mines Act 1952, Aims, Object, Commencement, definition, Inspectors & certifying surgeons, Committees, provisions as to health & safety, Hours & limitation of employment, Leave with wages, Regulation, rules, Penalties & procedures.

UNIT-II

Bonded Labour System (Abolition) Act 1976, Aims, object, operation, definition of Act, Abolition of bonded labour system, Extinguishment of liability to repay bonded debt, Implementing authorities, Vigilance committee, Offences & procedure for trial.

UNIT-III

Equal remuneration Act 1976, Introduction, definition, Act to have overriding effect, Payment of remuneration of equal rates to men & women workers & other matters, Miscellaneous – duty of employers to maintain register, inspection, penalties, offences by cognizance & trial of offence, power of central Government.

UNIT-IV

Child Labour (Prohibition & Regulation Act 1986), Definition, object, scope of act, Prohibition of employment of children in certain occupation & process, Regulation of condition of work of children, Miscellaneous, Penalties, procedure, employment of inspector, power, rules, repeal and saving.

UNIT-V

E.S.I. Act 1948, Definition, Object, Scope of Act, Corporation, Standing committee & medical benefit leave, Finance & Audit, Contribution, Benefits, Adjudication of disputes, clause, Penalties.

BOOKS RECOMMENDED:-

1. Malik, P.L. : Industrial Law
2. Pande V.N. : Text-Book of labour & Industrial Law
3. Shrivastava K.D. : Commentaries on Factories Act, 1948
4. Padhi : Labour and industrial laws PHI
5. Shrivastava K.D. : Commentaries on Workman Compensation Act 1923
6. Shrivastava K.D. : Law Relating to Trade Union in India



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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL

LL.B. PART-III SEMESTER - VI

PAPER – II INSURANCE LAW

UNIT-I Introduction

Definition nature and history of insurance, Concept of Insurance and law of contract and law of torts future of insurance in globalizes economy, History and development of insurance in India, Insurance Regulatory Authority – role and functions.

UNIT – II General Principles of Law of Insurance

Contract of Insurance-classification of contract of insurance, nature of various insurance contracts parties thereto, principle of good faith, non disclosure, misrepresentation in insurance contracts, Insurable interest, The risk, The policy, classification of policies – its form and contents, its commencement, duration, cancellation, alteration, rectification, renewal, assignment, construction, Conditions of the policy, Alteration of the risk, Assignment of the subject matter.

UNIT – III Insurance

Nature and scope of life insurance, definition kinds of life insurances, the policy and formation of a life insurance contract, Event insured against life insurance contract, Circumstances affecting the risk, Amounts recoverable under life policy, Persons entitled to payment, Settlement of claim and payment of money.

UNIT – IV Marine Insurance

Nature & scope, Classification of marine policies, The marine Insurance Act 1963, Insurable interest, insurable value, Marine insurance policy – conditions, express – warranties, constructions of terms of policy, Voyage – deviation, Perils of the sea, Partial loss or ship and of freight, salvage, general average, particular charges, Measures of indemnity, total valuation, liability to third parties.

UNIT – V Social Insurance in India

Important elements in social insurance, its need, Commercial insurance and social insurance, Workmen's compensation – scope, risk covered, industrial accidents occupational diseases, cash benefits, incapacity, amount of compensation, nature of injuries, dependents schedule, Sickness insurance, a darker scheme, stack and Rao scheme for wage earners and others, risks covered, maturity and other benefits, Old age, premature death and invalidity insurance of pension insurance, public provident fund, Fire insurance, Social insurance for people like seamen, seamen, circus workers and agricultural, workers, Public liability insurance, The scheme, Authorities.

BOOKS RECOMMENDED:-

1. Singh, Bridge Anand, New Insurance Law (2000) Union Book Publishers, Allahabad
2. Jvamy, Case Book on Insurance Law (1984), Butterworths
3. Jvamy, General principles of insurances law (1993), Butterworths
4. John Birds, Modern insurances law (1988), Sweet and Maxewell
5. Sreenivasan. M.N. Principles of insurance law (1997), Ramaniya pub.Banglore
6. M.N. Mishra – Law of Insurance – Central Law Agency, Allahabad.



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LL.B. PART-III SEMESTER - VI

PAPER –III BANKING LAW

UNIT – I Introduction

Evolution of Banking institution in India banking definition, banking company in India, banking legislation in India-common law and statutory, Commercial banks: function, Essential functions, Agency services, System of banking : Unit banking, branch banking, group banking and chain banking.

UNIT – II Bank and Customers

Customer : meaning, Legal character of banker – customer relationship, Special types of customers : Lunatics, minors, agents, administrators and executors, partnership firms and companies, Cheque – Duties and liabilities of banks payment of cheques by bank liabilities of the banker in case of dishonor-protection of paying banker-forged cheques – alteration of cheque – collection of cheques and drafts-protection of collecting banker.

UNIT-III

Bill of exchange, promissory note – Hindi types of Hindi, notary public noting protest acceptance for honour payment for honour, Holder and holder in due course-distinction between a holder and holder in due course essential features of negotiable instrument – different types of bill and note reasonable, acceptance and negotiations, types of endorsement – restrictive endorsement – endorsement excluding personal liability – partial endorsement – (once a bearer in tangent always a bearer instrument), Dishonor of negotiable instrument.

UNIT – IV Control Banking Theory and RBI

Characteristics and function of central banks, The Reserve Bank of India as central bank of India, Objectives and organizational structure, Functions, Regulations of the monetary system, Monopoly of note issue, Credit control, Determination of bank rate policy, Open market operations, Banker of Government, Control over non-banking financial institutions, Economic and statistical research, Staff training, Control and supervisions of other banks, Interest: Rule against penalties, default and recovery.

UNIT – V Merchant Banking

Merchant banking in India, SEBI (Merchant Bankers) Regulations, 1992, Recovery of Debts Due to Bank and Financial institutions Act, 1993.

BOOKS RECOMMENDED:-

1. M.S. Parthasarthy (ed.) Kherganvala on the Negotiable Instruments Act (1998), Butterworth, New Delhi
2. M.L. Tannen's Banking Law and Practice in India, (2000) India Law House, New-Delhi
3. S.N. Gupta, The Banking Law in Theory and Partice, (1999), Universal New Delhi
4. G.S.N. Tripathi (ed.), Sethi's Commentaries on Banking Regulation Act 1949 and Allied
5. Banking Laws (2000), Law Pub. Allahabad.



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LL.B. PART-III SEMESTER - VI

PAPER – IV CRIMINOLOGY, PENOLOGY AND FORENSIC SCIENCE

UNIT-I

Origin and concept of crime, definition, scope, classification of crimes, theories of criminology, emerging patterns of crimes. Crime and criminals, white collar crimes, offences against person and property – legal and social aspects; Punishment theories, objectives and types, institutional & non – institutional treatment of offenders; criminology causation.

UNIT-II

Schools of thought in criminology; history of institutional correction; correctional institutions of juvenile and adults special facilities and amenities for inmates; special correctional institutional methods of correction; latest development.

UNIT-III

Crime prevention and recidivism; prisons, probation and parole, police organization, case diary; arrest and seizure.

UNIT-IV

History and development of forensic science, areas and scope; scene of crime and preservation, collection, packing and transportation of various types of physical evidence; impressions finger prints, food and footwear prints, types prints, track marks, call patterns.

UNIT-V

Questioned documents; nature, types and examination of forged documents, charged documents, attestation in documents, characteristics seal and examination of handwritten typed printed & indented materials; seal & rubber stamps; DNA profiling and forensic aspect.

BOOKS RECOMMENDED:-

1. Sutherland : Principles of Criminology
2. Ahmad Siddique : Criminology – problems and perspectives
3. N.V. Paranjape : Criminology and Penology
4. Bansanti Lal Babel : Apradh Shastra
5. J. D. Sharma : VidhiVigyan and VishVigyan
6. H.J. Walls : Forensic Science
7. Basanti Lal Babel : NayayikVigyan



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LL.B. PART-III SEMESTER - VI

PAPER – V INTERPRETATION OF STATUTES

UNIT – I Interpretation of Statutes

Meaning of the term ‘statutes’, Commencement, operation and repeal of statutes, Purpose of interpretation of statutes.

UNIT – II Aids to Interpretation

Internal aids – Titles, Preamble, Heading and marginal notes, Sections and sub-sections, Punctuation marks, Illustrative, exceptions, provisos and saving clauses, Schedules, Non-obstinate clause. External aids – Dictionaries, Translations, Travaux Préparatoires, Statutes in pari materia, Contemporanea Expósito, Debates, inquiry commission reports and Law commission reports.

UNIT – III Rules of Statutory Interpretation

Primary rules, Literal rule, Golden rule, Mischief rule (rule in the Heydon’s case).

UNIT – IV Interpretation with reference to the subject matter and purpose

Restrictive and beneficial construction, Taxing statutes, Penal statutes, Welfare legislation.

UNIT – V Principal of Constitutional Interpretation

Harmonious constructions, Doctrine of pith and substance, Colourable legislation, Ancillary powers, “Occupied field”, Residuary power, Doctrine of repugnancy.

BOOKS RECOMMENDED:-

1. G.P. Singh, Principal of Statutory Interpretation, (7th ed.), 1999, Wadhwa Nagpur
2. P.St. Langan (ed.), Maxwell on the Interpretation of Statutes (1976), N.M. Tripathi, Bombay
3. K. Shanmukham, N.S. Bindras’s Interpretation of Statutes (1997) The Law Book Co. Allahabad
4. V. Sarathi, Interpretation of Statutes, (1984), Eastern & Co.
3. M.P. Jain, Constitutional Law of India, (1994) Wadhwa & Co.
4. M.P. Singh, (ed.) V.N. Shukla’s Constitution of India (1994) Eastern Lucknow
5. U. Baxi, Introduction to Justice K.K. Mathews, Democracy Equality and Freedom (1978) Eastern Lucknow.



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**LL.B. PART-III SEMESTER - VI
PAPER – VI MOOT COURT (CLINICAL-IV)**

In this paper the marks shall be divided in following parts

1. Participation in Moot Court (30 Marks) – every student may be required to do at least 3 moot courts with 10 marks for each. The moot court work will be on assigned problem and it will be evaluated for 5 marks for written submissions & 5 for oral advocacy.
2. Observance of Trial – (one civil & one criminal case) Students may be required to attend two trials in the course.
3. Advocate chamber
4. Dairy prepration – 20 marks (one civil & one criminal case).
5. Viva – 10 marks – the viva voce examination on all the above 3 aspects will be conducted.

This practical should be conducted in the Department of Law of concern University. Viva – Voce examination of this paper will be conducted by a panel of two examiners out of which one external examiner shall be appointed by the examination committee of the University and internal examiner will be head of the Department of Law of the University

BOOKS RECOMMENDED:-

1. Dr. Kailash Roy : Moot Court
2. Dr.Sant Kumar Gupta : Moot Court Pre – Trial Preparation & Participation
3. Dr. Om Prakash Mishra : In Trial Proceedings

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